



State of Ohio Administrative Policy

Data Classification

No: IT-13

Information Technology

Effective:

April 29, 2025

Issued By:

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I. Purpose

This policy establishes **Data** classification requirements that will provide consistency in understanding and appropriately managing **State Data**. The first occurrence of a defined term in the policy is in bold, italic type, and is hyperlinked to the definition in Section IV.

II. Scope

This policy applies to all state Agencies, boards, and commissions under the authority of the Governor (collectively referred to as Agency or Agencies).

III. Policy

Each Agency must serve as a **Classification Authority** for the Data and **Information** that it collects or manages to fulfill its mission.

- A. **Data Classification Labels**: Agencies must classify and label Data by both the Classification Methodology described in Ohio IT Standard ITS-SEC-04/Data Classification (ITS-SEC-04) and according to state and federal law, such as **Protected Health Information** under the Health Insurance Portability and Accountability Act, **Federal Tax Information** under the Internal Revenue Code, **Criminal Justice Information** Services Data, and **Confidential Personal Information** under section 1347.15 of the Ohio Revised Code (ORC).
- B. **Data Classification Roles and Responsibilities**: Agencies must establish Data classification roles and responsibilities as described in ITS-SEC-04 and in alignment with Ohio Administrative Policy IT-19/Data Governance. Agencies must ensure that individuals

assigned to those roles are trained on the specific Data classification functions assigned to each role.

- C. **Compliance Reviews:** Agencies must conduct regular reviews of Data Classification Labels to ensure compliance with any state or Agency policies, and with federal, state, and local laws that regulate the collection, use, storage, release, access, retention, and disposal of State Data.

IV. Definitions

- A. Classification Authority. Entity with the authority to classify Data.
- B. Confidential Personal Information. Personal Information defined by ORC 1347.01 that agencies are prohibited from releasing under Ohio's Public Records Law and that is retrieved from a system within the scope of ORC 1347.15.
- C. Criminal Justice Information. Criminal justice Information (CJI) is the abstract term used to refer to all of the FBI Criminal Justice Information Services (CJIS) provided data necessary for law enforcement agencies to perform their mission and enforce the laws, including but not limited to: biometric, identity history, person, organization, property (when accompanied by any **Personally Identifiable Information**), and case/incident history data. In addition, CJI refers to the FBI CJIS-provided data necessary for civil agencies to perform their mission; including, but not limited to data used to make hiring decisions. The following type of data are exempt from the protection levels required for CJI: transaction control type numbers (e.g., originating identifying number (ORI), national identification number (NIC), universal control number (UCN), etc.) when not accompanied by Information that reveals CJI or Personally Identifiable Information.¹
- D. Data. Coded representation of quantities, objects and actions. The word, "Data," is often used interchangeably with the word, "Information."
- E. Data Classification Label. Denotes the level of protection based on the confidentiality and criticality requirements of Data in accordance with the agency's risk assessment. Data classification labels enable policy-based standards for securing and handling Data and sharing Information among organizations. The terms, "Data Classification Label" and "Classification Label," are used interchangeably.²

¹ "Criminal Justice Information Services (CJIS) Security Policy, Version 5.9.1," U.S. Department of Justice, Federal Bureau of Investigation, Criminal Justice Information Services Division, 1 October 2022 <https://www.fbi.gov/file-repository/cjis_security_policy_v5-9-1_20221001.pdf/view>.

² Stine, Kevin, Rich Kissel, William C. Barker, Jim Fahlsing, Jessica Gulick. "NIST Special Publication 800-60 Revision 1, Volume I: Guide for Mapping Types of Information and Information Systems to Security Categories," U.S. Department of Commerce National Institute of Standards and Technology, August, 2008 <https://csrc.nist.gov/publications/nistpubs/800-60-rev1/SP800-60_Vol1-Rev1.pdf>.

- F. Federal Tax Information (FTI). Consists of federal tax returns and return Information (and Information derived from it) that is in the agency's possession or control which is covered by the confidentiality protections of the IRC and subject to the IRC 6103(p)(4) safeguarding requirements including IRS oversight. FTI is categorized as sensitive but unclassified Information and may contain Personally Identifiable Information (PII). FTI includes return or return Information received directly from the IRS or obtained through an authorized secondary source, such as Social Security Administration (SSA), Federal Office of Child Support Enforcement (OCSE), Bureau of the Fiscal Service (BFS), or Centers for Medicare and Medicaid Services (CMS), or another entity acting on behalf of the IRS pursuant to an IRC 6103(p)(2)(B) Agreement. FTI includes any Information created by the recipient that is derived from federal return or return Information received from the IRS or obtained through a secondary source.³
- G. Information. Data processed into a form that has meaning and value to the recipient to support an action or decision. "Information" is often used interchangeably with "Data."
- H. Personally Identifiable Information (PII). Information that can be used directly or in combination with other information to identify a particular individual. It includes:
- a name, identifying number, symbol, or other identifier assigned to a person
 - any information that describes anything about a person
 - any information that indicates actions done by or to a person
 - any information that indicates that a person possesses certain personal characteristics⁴
- I. Protected Health Information. Includes the Data below as it is used to associate patient health Information:
- names
 - all geographic subdivisions smaller than a state, including street address, city, county, precinct, ZIP code and their equivalent geocodes, except for the initial three digits of the ZIP code if, according to the current publicly available Data from the Bureau of the Census: (1) The geographic unit formed by combining all ZIP codes with the same three initial digits contains more than 20,000 people; and (2) The initial three digits of a ZIP code for all such geographic units containing 20,000 or fewer people is changed to 000
 - all elements of dates (except year) for dates that are directly related to an individual, including birth date, admission date, discharge date, death date and all ages over 89 and all elements of dates (including year) indicative of such age, except that such ages and elements may be aggregated into a single category of age 90 or older

³ "Publication 1075 Tax Information Security Guidelines for Federal, State and Local Agencies, Safeguards for Protecting Federal Tax Returns and Return Information," Internal Revenue Service, November 2021 <<https://www.irs.gov/pub/irs-pdf/p1075.pdf>>.

⁴ Based on Ohio Revised Code Section 1347.01 (E).

- telephone numbers, fax numbers, email addresses, Social Security numbers, medical record numbers, health plan beneficiary numbers, account numbers, certificate/license numbers, vehicle identifiers and serial numbers, including license plate numbers
 - device identifiers and serial numbers
 - Web Universal Resource Locators (URLs) and Internet Protocol (IP) addresses
 - biometric identifiers, including finger and voice prints and, full-face photographs and any comparable images
 - any other unique identifying number, characteristic, or code, except as permitted⁵
- J. State Data. All Data and Information provided by, created by, created for, or related to the activities of the state and any Information from, to, or related to all persons that conduct business or personal activities with the state, including, but not limited to Confidential Data.

V. Authority

ORC 125.18

VI. Resources

Document Name	Location
State of Ohio IT Standard ITS-SEC-04/Data Classification	https://ohid.ohio.gov/wps/myportal/gov/myohio/my-resources/oisp/oisp-services/information-security-privacy-standards/its-sec-04-data-classification
Ohio Administrative Policy IT-19/Data Governance	https://das.ohio.gov/technology-and-strategy/policies/IT-19

VII. Inquiries

Direct inquiries about this policy to:

Office of Information Security & Privacy
Office of Information Technology
Ohio Department of Administrative Services
30 East Broad Street, 39th Floor
Columbus, OH 43215

⁵ Code of Federal Regulations, Title 45 Public Welfare, Subtitle A Department of Health and Human Services, Subchapter C Administrative Data Standards and Related Requirements, Part 164 Security and Privacy, Section 164.514, <<https://www.ecfr.gov/current/title-45/subtitle-A/subchapter-C/part-164/subpart-E/section-164.514>>.

1-614-644-6860 | state.isp@das.ohio.gov

State of Ohio Administrative Policies may be found online at
<https://das.ohio.gov/home/policy-finder/filter-policy-finder>

VIII. Revision History

Date	Description of Change
07/01/2015	Original Policy.
03/27/2018	Added an entry into Appendix B Resources that refers to the DAS Office of Information Security and Privacy IT Security Tools that are related to Data classification.
07/22/2021	Updated the policy template to reflect the DAS director change.
02/10/2022	Conducted maintenance review and made minor updates to align with current terminology, references, and policy template.
07/01/2024	Updated the requirements to align with Ohio Administrative Policy IT-19, “Data Governance.” Updated the role definitions. Removed outdated content. Updated the policy template. Added revision history review frequency statement.
04/29/2025	Updated to reflect the new approach to Data classification and the development of a companion standard, Ohio IT Standard ITS-SEC-04.